

LETTER OF GUARANTEE

[by individual(s)]

To :

VSTECS KU SDN BHD
(Company No. 123121-M)
Lot 3, Jalan Teknologi 3/5,
Taman Sains Selangor,
Kota Damansara,
47810 Petaling Jaya.
Selangor D.E.

Dear Sirs,

1. IN CONSIDERATION of your agreeing at my/our request to supply goods and services and or to continue to supply goods or otherwise to give credit in such sum(s) and for so long as you may think fit to the party whose name and particulars are set out in Part I of the Schedule annexed hereto ("the Customer"), I/we, the undersigned, the director(s) of the Customer and guarantor(s) (my/our name(s) and particulars are as set out in Part II of the Schedule hereto), hereby jointly and severally (where applicable) agree/undertake and guarantee as principal debtor(s) and not merely as surety/sureties to you the payment on demand all monies due to you and discharge of all the trading liabilities incurred to you from or by the Customer which now are or shall at any time hereafter be owing to you by the Customer arising from or in connection with the said supply of goods and services and/or the giving of credit to the Customer as aforesaid at any time and giving from time to time, together with interest thereon and costs charges and expenses incurred by you in enforcing this Guarantee.
2. This Guarantee shall be a continuing guarantee to you for the whole debt that shall be contracted by the Customer with you in respect of any credit facility given or goods and services supplied or to be supplied and delivered by you as aforesaid.
3. This Guarantee shall not be considered as satisfied by any intermediate payment or satisfaction of the whole or any part of any sum owing as aforesaid but shall be continuing security and shall extend to cover any sum or sums of money which shall for the time being constitute the balance from the Customer to you upon such account as hereinafter mentioned.
4. You shall be at liberty without discharging me/us from liability hereunder to grant time or any other indulgence to the Customer in respect of credit and/or goods and services supplied to the Customer as aforesaid and to accept payment from the Customer in cash or by means of negotiable instruments.
5. You may at any time at your absolute discretion without giving any notice whatsoever to me/us refuse any further supply of goods and services to the Customer without discharging or impairing my/our liabilities under this Guarantee.
6. Should the Customer become insolvent or be wound up, my/our obligations and liabilities hereunder shall be limited to the balance of the amount currently outstanding against the customer.
7. Any statement or indebtedness in writing signed by any of your authorised officers shall be conclusive proof of the amount of indebtedness of the Customer to you and any judgment shall be binding and conclusive on and against me/us in all courts of law in Malaysia and elsewhere.
8. Any notice or demand hereunder shall be deemed to have been sufficiently given if sent by prepaid registered post to my/our or my/our legal personal representative(s)' either personally or to the address(es) last known to you or stated herein and shall be presumed to have reached the addressee(s) in the ordinary course of post and notice so sent shall be deemed to be served on the seventh day following that on which it is posted.
9. This Guarantee shall not be determined or affected in any way by my/our death, insanity or bankruptcy and shall in all respects and for all purposes be binding and operative until discharged by performance thereof.
10. My/our obligations and liabilities hereunder shall continue to be valid and binding upon me or upon each of us and my/our executors, administrators or legal personal representatives as the case may be, notwithstanding any change in the style, name or constitution of the Customer or any change in your corporate structure.
11. In order to give effect to this Guarantee, I/we declare that you shall be at liberty to act as though I/we were the principal debtor(s) and I/we hereby waive all and any of my/our rights as surety/sureties which may at any time be inconsistent with any of the above provisions.

(Initial)

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12. In this Guarantee unless there is something in the subject or context inconsistent with such construction or unless if is otherwise expressly provided :-

- i) words in the singular include plural ;
- ii) words in the plural include singular ;
- iii) words applicable to natural persons include any body of persons firm or partnership corporate or incorporate ;
- iv) where this Guarantee is given or executed by two (2) or more individuals the agreements, covenants, stipulations and undertakings expressed to be made by and the part of such individuals be binding upon such individuals jointly and severally.

13. This Guarantee shall be interpreted in accordance with and governed by the laws of Malaysia.

14. I/We hereby declare that the contents of this Guarantee have been explained to me/us in a language that I/we understand and I/we have fully understood the same day signing it.

IN WITNESS WHEREOF I/we, the Guarantor(s), have set my/our hand(s) hereunder on this
_____ day of _____ 20

Signature of Guarantor
Name:

Signature of Witness
Name :
NRIC No:

Signature of Guarantor
Name:

Signature of Witness
Name :
NRIC No:

THE SCHEDULE REFERRED TO ABOVE

Part I

Name and particulars of Customer (applicant) :

1.a) Registered Address :

b) Operation Address :

2. Company Registration No. :

3. List of Directors :
Name

I/C No.

a)	
b)	
c)	
d)	
e)	
f)	

Part II

Name and particulars of Guarantor(s)

Name :
NRIC No :
Address :

Name :
NRIC No :
Address :